

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 9, 2026
8:30 a.m./1:30 p.m.

15. MELISSA FLANIGAN V. SHAUN FLANIGAN

23FL0255

On March 26, 2026, the court made parenting plan orders and set a review hearing for July 9, 2026. Parties were directed to file Supplemental Declarations no later than 10 days prior to the review hearing.

Minor's Counsel filed a Statement of Issues and Contentions with requested orders on June 29, 2026. It was served the same day. Minor's Counsel requests the court maintain all current orders in full force and effect. She also requests an order precluding the parents from sleeping in the same bed as the minor and for the child to have a new individual therapist. Minor's Counsel sets forth a means by which a new therapist shall be selected for the minor.

Petitioner filed a Supplemental Declaration on June 29, 2026. Although there is a Proof of Service attached, it is unsigned. Petitioner requests the parties return to the prior parenting plan.

Respondent filed a Reply to Petitioner's Supplemental Declaration on June 30, 2026. As such, the court deems any defect in service of the Supplemental Declaration to have been waived.

Respondent requests that Petitioner comply with all therapeutic recommendations related to the minor addressing enmeshment, separation anxiety, resist refuse dynamic, and age-appropriate independence. Respondent also requests an immediate transition of the minor to not sleeping in Petitioner's bed. Respondent requests Petitioner complete parenting classes focused on age-appropriate adolescent development, healthy parent child boundaries, emotional regulation, separation anxiety, and supporting the minor's relationship with both parents. Respondent requests a further review hearing as well as consequences for Petitioner for failure to comply with therapeutic recommendations.

The court has read and considered the filings as outlined above. The court finds the current parenting plan remains in the minor's best interest. The court orders the parties to select a new therapist for the minor with therapeutic goals of addressing enmeshment, separation anxiety, resist refuse dynamic, and age-appropriate independence. Respondent shall provide the names of three therapists who have experience in the above listed issues as well as high conflict dissolution cases within one week of the hearing. Minor's Counsel shall have one business day to object to any of the names provided. If Minor's Counsel objects to any names, respondent shall have one business day to provide a replacement name. Once Minor's Counsel agrees to the three names suggested by father mother shall

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have one week to pick one of the providers. Once a provider is selected, the parties shall terminate the services of the minor's current therapist and shall contact the new therapist forthwith to begin the intake process. The intake should be scheduled within two business days.

The court further orders the minor is not to co-sleep with Petitioner. Both parties are to complete parenting classes focused on age-appropriate adolescent development, healthy parent child boundaries, emotional regulation, separation anxiety, and supporting the minor's relationship with both parents. If the parties are unable to find a parenting class which addresses all of those issues, the parties may address the issues in individual therapy. The court denies the request to set a further review hearing the court notes that the parties are set to commence trial on the issues of custody and parenting time on September 29, 2026. Both parties are cautioned that failure to comply with court orders may result in a change in custody orders, sanctions, and/or contempt of court.

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #15: THE COURT FINDS THE CURRENT PARENTING PLAN REMAINS IN THE MINOR'S BEST INTEREST. THE COURT ORDERS THE PARTIES TO SELECT A NEW THERAPIST FOR THE MINOR WITH THERAPEUTIC GOALS OF ADDRESSING ENMESHMENT, SEPARATION ANXIETY, RESIST REFUSE DYNAMIC, AND AGE-APPROPRIATE INDEPENDENCE. RESPONDENT SHALL PROVIDE THE NAMES OF THREE THERAPISTS WHO HAVE EXPERIENCE IN THE ABOVE LISTED ISSUES AS WELL AS HIGH CONFLICT DISSOLUTION CASES WITHIN ONE WEEK OF THE HEARING. MINOR'S COUNSEL SHALL HAVE ONE BUSINESS DAY TO OBJECT TO ANY OF THE NAMES PROVIDED. IF MINOR'S COUNSEL OBJECTS TO ANY NAMES, RESPONDENT SHALL HAVE ONE BUSINESS DAY TO PROVIDE A REPLACEMENT NAME. ONCE MINOR'S COUNSEL AGREES TO THE THREE NAMES SUGGESTED BY FATHER, MOTHER SHALL HAVE ONE WEEK TO PICK ONE OF THE PROVIDERS. ONCE A PROVIDER IS SELECTED THE PARTIES SHALL TERMINATE THE SERVICES OF THE MINOR'S CURRENT THERAPIST AND SHALL CONTACT THE NEW THERAPIST FORTHWITH TO BEGIN THE INTAKE PROCESS. THE INTAKE SHOULD BE SCHEDULED WITHIN TWO BUSINESS DAYS.

THE COURT FURTHER ORDERS THE MINOR IS NOT TO CO-SLEEP WITH PETITIONER. BOTH PARTIES ARE TO COMPLETE PARENTING CLASSES FOCUSED ON

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AGE-APPROPRIATE ADOLESCENT DEVELOPMENT, HEALTHY PARENT CHILD BOUNDARIES, EMOTIONAL REGULATION, SEPARATION ANXIETY, AND SUPPORTING THE MINOR'S RELATIONSHIP WITH BOTH PARENTS. IF THE PARTIES ARE UNABLE TO FIND A PARENTING CLASS WHICH ADDRESSES ALL OF THOSE ISSUES THE PARTIES MAY ADDRESS THE ISSUES IN INDIVIDUAL THERAPY. THE COURT DENIES THE REQUEST TO SET A FURTHER REVIEW HEARING THE COURT NOTES THAT THE PARTIES ARE SET TO COMMENCE TRIAL ON THE ISSUES OF CUSTODY AND PARENTING TIME ON SEPTEMBER 29, 2026. BOTH PARTIES ARE CAUTIONED THAT FAILURE TO COMPLY WITH COURT ORDERS MAY RESULT IN A CHANGE IN CUSTODY ORDERS, SANCTIONS, AND/OR CONTEMPT OF COURT.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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16. RAYNA FORBYN V. CHRISTOPHER BABBES

26FL0282

Respondent filed a Request for Order (RFO) seeking child custody orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on May 15, 2026, and a review hearing on July 9, 2026. Proof of Service shows Petitioner was personally served with some, but not all, of the required documents on May 5, 2026.

Both parties appeared at CCRC and fully participated. The parties were able to reach many agreements. A report with the parties' agreements as well as further recommendations was filed with the court on May 18, 2026. Copies were mailed to the parties on May 19, 2026.

Respondent filed a letter objecting to the CCRC recommendations. There is no Proof of Service for this document, therefore, the court cannot consider it.

The court finds good cause to proceed on the merits of the RFO despite the lack of complete service, as Petitioner fully participated in CCRC and is aware of the requested orders. The court finds the recommendations as set forth in the May 18th CCRC report to be in the best interest of the minor. The court adopts the recommendations as set forth.

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #16: THE COURT FINDS GOOD CAUSE TO PROCEED ON THE MERITS OF THE RFO DESPITE THE LACK OF COMPLETE SERVICE, AS PETITIONER FULLY PARTICIPATED IN CCRC AND IS AWARE OF THE REQUESTED ORDERS. THE COURT FINDS THE RECOMMENDATIONS AS SET FORTH IN THE MAY 18TH CCRC REPORT TO BE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE RECOMMENDATIONS AS SET FORTH. ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR